

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MOZAMBIQUE

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Mozambique, grounded in land rights acquired by occupation without title, the mandatory community consultation, the three-stage environmental licence, and the resettlement regulation

This guide uses the Mozambican legal terms you will actually encounter (the DUAT, occupation in good faith and under customary norms, the consulta comunitária, the Licença Ambiental and its three stages, the EPDA, categories A+, A, B and C, the Plano de Reassentamento and its supervision commission, and so on), each explained in plain language where it first comes up. The rules are amended periodically and the responsible ministry has been renamed more than once; the core mechanics below apply, but check the current instruments.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Portuguese legal terms are given with a short English gloss, since the law is in Portuguese.

A note on money. Budgets in this guide are in meticaís (MZN). Every figure is indicative — most Mozambican community campaigns run on very little cash, and the most valuable evidence in this country costs nothing but time.

A note on what makes this system unusual. In Mozambique **land belongs to the State and cannot be sold**. Communities hold rights over it by **occupation** — under customary norms and practices, or in good faith over ten years — and **the absence of a title does not extinguish that right**, which can be proven by **witness testimony**. That single rule is the foundation of almost every community land case here.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Mozambique, and the country's land law gives rural communities a starting position that many others lack. Under the **Lei de Terras**, land is the **property of the State** and **cannot be sold, alienated, mortgaged or pledged**. What people hold is the **DUAT** — the right to use and benefit from land — and that right is acquired in three ways: by **occupation according to customary norms and practices**, by **national persons occupying land in good faith for at least ten years**, and by **application to the State**. The first two are automatic. They do not require anyone to have issued you a document. And the law is explicit that the **absence of a formal title does not extinguish a right acquired by good-faith occupation**, which may be proven by **witness**

testimony as well as by a cadastral title. In a country where most rural families have never held a piece of paper about their land, that provision is the difference between having rights and having nothing.

The law adds a second protection: before the State grants a **DUAT** to an investor over land where people already live and farm, there must be a **consultation of the local community**. Mozambican law also allows communities, properly organised, to act as legal persons and to have their land **delimited** — a process that records collective rights and in which community participation is central.

The environmental system layers onto this. The **Lei do Ambiente** applies to **all public or private activities that may directly or indirectly affect environmental components** — water, air, soil, subsoil, flora, fauna, and expressly the **socio-economic and health conditions affecting communities** — and requires a **Licença Ambiental** before implementation of any activity likely to cause significant impacts. The current impact-assessment regulation sorts projects into **four categories — A+, A, B and C** — and, unusually, splits the licence into **three stages: a provisional licence** once the scoping study is approved; an **installation licence** issued only after the impact study is approved **and the Resettlement Plan, where there is one, has been presented**; and finally an **operation licence**. Public participation has its own dedicated general directive, and resettlement from economic activities has its own regulation, its own technical directive for resettlement plans, and a **commission to monitor and supervise** the process.

The honest counterweight is severe. Mozambique has faced enormous pressure from gas, coal, heavy sands, plantations and infrastructure, and documented experience includes companies fencing off community fields, consultations conducted as formalities, and resettlements that left families worse off. The environmental studies are commissioned by proponents. Institutions are stretched, and provincial services often lack capacity. Rural communities are frequently unaware that their unwritten rights are legally protected. And in the north, conflict has displaced hundreds of thousands, making ordinary legal campaigning impossible in some districts — this guide cannot be applied where security does not permit it.

What "winning" realistically means. Rarely a gas or coal project cancelled. More often: **community land rights recognised** despite the absence of title; a **consultation redone** because the first was a formality; land **delimited** so the community's boundaries are recorded; a **licence withheld or conditioned** at the installation stage until a proper resettlement plan exists; **resettlement terms improved** — housing, land of equivalent quality, restored livelihoods; **compensation paid** for fields, trees and structures; or a project redesigned around a settlement. The realistic goal is to convert an unwritten right into a recorded, defended one, and to use the licence stages and the resettlement rules as leverage.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the category, the licence stage, and whether resettlement is proposed.
2. **Documentation** — build the record of occupation and use that proves your DUAT, and the record of harm.
3. **Local opposition** — organise so the consultation cannot be staged and the community speaks with one voice.
4. **Legal challenges** — the consultation, the licence stages, the resettlement plan, and the courts.
5. **Media strategy** — coverage that raises the cost, including with international financiers.

No single step wins alone. Here the combination that works is **proof of occupation plus insistence on a real consultation and a proper resettlement plan**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Mozambique's tilt is capacity and power: proponent-funded studies, stretched provincial services, very large investors, and communities often unaware of their own rights. Assessing that honestly helps you choose the right tools: the strongest routes are **documenting occupation, demanding a genuine consultation**, using the **installation-licence stage** where a resettlement plan must be presented, and engaging the **resettlement supervision commission**. Section 13 deals honestly with tilted situations, including conflict-affected areas.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately if a project or consultation has been announced. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you judge how far to take it, and where not to.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Mozambique is a unitary republic with **provinces, districts, postos administrativos** and **localidades**, alongside **traditional and community authorities** who remain central in rural land matters. Two bodies of law govern most development conflicts: the **Lei de Terras** with its regulation, and the **Lei do Ambiente** with the impact-assessment regulation, the public-participation directive and the resettlement rules.

The bodies that decide — and what each one controls

The environment ministry and its provincial services. The ministry responsible for environment issues the **Licença Ambiental**, approves environmental studies, and supervises compliance. The first step in any project is **registration with the ministry through the Provincial Environmental Service (SPA)** of the province where the project will physically sit — so your provincial service is the nearest point of contact and the place where the file begins.

The cadastre and land administration services. Administer the **DUAT**: applications, **delimitation** of community land, **demarcation** of individual rights, and the register. They also hold the records that show what was granted, when, and over what area.

District and provincial administrations. Convene and record the **community consultation**, and are central to any resettlement.

Community and traditional authorities. Recognised participants in land matters, and — where a community is properly organised — the community itself may act as a legal person. Their role in the consultation and in delimitation is substantial, though a leader's signature is not the same thing as the community's consent.

The resettlement commission. Where resettlement arises from an economic activity, a **commission to monitor and supervise the resettlement process** exists under its own internal regulation, alongside a **technical directive governing how resettlement plans are prepared and implemented**. This is a distinct, addressable body.

Sector regulators. Mining and petroleum have **their own environmental regulations** on top of the general regime, so for gas, coal and heavy sands there is a second layer to check.

The courts and the administrative jurisdiction. Available to challenge administrative acts, though slow; most practical gains come earlier.

Which one is "yours"? Ask: what **category** is the project — A+, A, B or C? Which **licence stage** has been reached? Has a **community consultation** been held, and is it recorded? Is a **DUAT** being sought over land your community occupies? Is **resettlement** proposed? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Two processes run in parallel: land and environment.

The land track, under the Lei de Terras:

1. **The starting position.** Land is **State property** and cannot be sold. Communities and individuals hold the **DUAT**.
2. **How your right arises.** By **occupation according to customary norms and practices** — which the law deliberately does not define, recognising legal pluralism — or by **good-faith occupation by nationals for at least ten years**. Both are acquired **without any application**, and the **absence of a title does not extinguish them**.
3. **How your right is proven.** By a **title issued by the cadastre services**, or — for rights acquired by occupation — by **testimonial evidence**. Witnesses are legal proof here.
4. **When an investor applies.** A **consultation of the local community** is required in the process of granting a DUAT, so that the existence of occupied land is established and the community's position recorded.
5. **Delimitation.** Community land may be **delimited**, recording collective boundaries with community participation, which converts a diffuse right into a documented one.

The environmental track, under the Lei do Ambiente and the impact regulation:

1. **Scope.** The law reaches **all public or private activities that may directly or indirectly affect environmental components**, expressly including **socio-economic and health conditions affecting communities** — so displacement, livelihoods and health are within scope, not outside it.
2. **Registration and categorisation.** The project is registered with the ministry through the **provincial environmental**

- service, and placed in **category A+, A, B or C**, which determines the study required, the process, and the fee.
3. **Scoping.** For the larger categories a **preliminary scoping study (EPDA)** is prepared; its approval may support a **provisional environmental licence**.
 4. **The study and public participation.** An **environmental impact study** — or a **simplified environmental study** for lesser categories — is prepared, with **public participation** governed by its own general directive, and general guidance on how studies must be conducted.
 5. **The installation licence — the key leverage point.** The **Licença Ambiental de Instalação** is issued **after approval of the impact study and after presentation of the Resettlement Plan, where one applies**. In other words, where people are to be moved, **no resettlement plan means no installation licence**.
 6. **The operation licence.** Issued for the operating phase, after installation.
 7. **Compliance and audit.** Environmental auditing has its own regulation, and quality and effluent standards apply; breaches can bring fines, suspension and cancellation of the licence.

The resettlement track, where displacement arises from an economic activity, has its **own regulation**, a **technical directive on preparing and implementing resettlement plans**, and a **monitoring and supervision commission**.

The rulebook — the policies that decide the outcome

- **Lei de Terras and its regulation.** Was the community's **occupation** recognised? Was the **consultation** genuinely held and properly recorded? Was a DUAT granted over land already occupied? Has the community's land been **delimited**?
- **Lei do Ambiente and the impact regulation.** Was the correct **category** applied? Was **public participation** conducted per the directive? Was the **licence** obtained before implementation, and at which **stage**? Was a **Resettlement Plan** presented before the installation licence?
- **The resettlement rules.** Was a plan prepared under the technical directive, and is the **supervision commission** functioning?
- **The Right to Information Law.** Mozambique has a statute on the **right to information**, which supports written requests for the study, the licence and the consultation record.
- **Sector environmental regulations** for mining and petroleum, layered on top of the general regime.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Mozambique's development strategy has leaned heavily on gas, coal, heavy sands, plantations and transport corridors, with very large foreign investors and lenders behind them; environmental studies are commissioned and paid for by proponents; provincial services are stretched; and rural communities frequently do not know that their unwritten occupation is a legal right. None of this is unlawful, but it explains the lean — and why proving occupation and forcing a genuine consultation matter so much.

The overseers — who watches the decision-makers

- **The environment ministry and provincial services** — approval, inspection, audit and licence cancellation.
- **The resettlement monitoring and supervision commission** — a body specifically constituted to oversee resettlement.
- **The cadastre services** — the land record, delimitation, and evidence of what was granted.
- **The Administrative Tribunal and the courts** — legality of administrative acts and public accounts.
- **The Provedor de Justiça and the national human rights commission** — administrative conduct and rights.
- **National civil-society organisations and lawyers** — Mozambique has organisations with long experience of community land rights, delimitation and resettlement, and their support is the single most valuable thing a rural community can obtain.
- **International lenders and buyers** — where a project is financed or oftaken internationally, external standards and grievance mechanisms are real and often faster than domestic enforcement.

Naming and using the right body matters: here the most consequential early judgment is usually **whether your community's occupation is documented, and whether a real consultation has taken place**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Mozambican and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Mozambique: your strongest asset is a

legal right you already hold without a document, and your strongest procedural lever is the **installation licence**, which cannot issue until a **resettlement plan** has been presented.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (MZN)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local organisation only	20-35%	6-24 months	low	Community speaks with one voice
Proving occupation (DUAT evidence)	40-60%	2-12 months	low	Rights recognised; compensation owed
Community land delimitation	35-55%	6-24 months	low-moderate	Boundaries recorded; future protection
Demanding a genuine consultation	30-50%	1-6 months	low	Consultation redone; terms negotiated
Objections in public participation	20-35%	1-3 months	low	Conditions; study reopened
Challenge at the installation-licence stage	30-50%	3-12 months	low	Licence withheld pending a proper plan
Resettlement plan and commission	30-50%	6-24 months	low	Better housing, land and livelihoods
Complaint of works without licence	25-45%	1-12 months	low	Suspension; fines; cancellation
International lender or buyer pressure	25-45%	3-18 months	low	Standards enforced; remedies funded
All steps combined	50-65%	12-36 months	low-moderate	Rights recognised, consultation redone, licence conditioned, resettlement improved, compensation paid

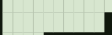
Key insight: all steps together are far more effective than any single one — and Mozambique's multipliers are unusual. The first is evidentiary: **occupation creates the right, no title is required, and witnesses can prove it**, so a community that records its own occupation carefully is in a strong legal position from the outset. The second is procedural: because the **installation licence** depends on presentation of a **resettlement plan**, communities facing displacement have a defined moment at which the project cannot lawfully advance without addressing them. The distinctive disadvantages are proponent-funded studies, stretched provincial services, very large investors, consultations conducted as formalities, and — in conflict-affected districts — conditions in which none of this can safely be attempted.

A note on cost: recording occupation, giving testimony, participating in consultations and complaining to the provincial service cost almost nothing. Delimitation and legal support are usually carried by national organisations that specialise in exactly this work. The expenditure that matters most is travel and convening, because communities are dispersed and the district capital is far.

Effectiveness Visualization

SUCCESS PROBABILITY (rights recognised, consultation redone, licence conditioned, resettlement improved, compensation paid)

FAVOURABLE SCENARIO (long-standing occupation, consultation defective or absent, resettlement proposed, organisation engaged):

All steps combined:		50-65%
Proving occupation:		40-60%
Installation-licence:		30-50%
Single step:		5-45%

TILTED SCENARIO (major national project, licence granted, works advanced, community divided or displaced):

All steps combined:		30-45%
Resettlement terms:		25-40%
Local + media:		15-30%
Single step:		3-15%

How to read this honestly. In Mozambique the strongest facts are: **occupation predating the project**, which creates a DUAT regardless of paperwork and which **witnesses can prove**; a **consultation that never happened, or**

happened without the community understanding what was agreed; works begun without the licence, or advanced beyond the stage the licence permits; and **resettlement carried out without a plan prepared under the technical directive**, or a plan that leaves families with worse land, worse housing or no restored livelihood. The most realistic outcomes are not cancellation but **recognition, compensation and materially better resettlement terms** — which, for a family facing the loss of its fields, is the outcome that actually matters. And be clear-eyed about two limits: very large strategic projects rarely stop, and in conflict-affected areas this guide's assumptions do not hold.

Step Importance Ranking (When All Combined)

1. **Documentation** — first in Mozambique, uniquely, because your land right exists but must be **evidenced**, and the evidence is testimony, mapping and use.
2. **Local opposition** — because consultation and resettlement are collective processes that a divided community loses.
3. **Legal challenges** — the consultation, the licence stages, and the resettlement plan.
4. **International pressure** — unusually effective where lenders and buyers are involved.
5. **Media** — which reaches national organisations and external financiers.

Winning Mozambican campaigns combined a careful record of occupation, a united community that refused a staged consultation, national legal support, and pressure at the licence and resettlement stages.

What Mozambican Campaigns Actually Show

A few patterns recur. **The law starts from community rights** — land is **State property that cannot be sold**, and the 1997 reform was explicitly a **juridical recognition of the existing rights of the rural population**, granting the **DUAT** through **occupation under customary norms and practices** or **good-faith occupation of at least ten years**, acquired automatically and **not extinguished by the absence of a title**, provable by **witness testimony**. **Consultation is built into land grants** — a **consultation of the local community** is required in the process of granting a DUAT, and community land may be **delimited** with community participation. **The environmental law reaches people, not just nature** — it covers activities affecting **socio-economic and health conditions of communities**, and requires a licence **before implementation begins**. **The licence has a resettlement gate** — the **installation licence** issues only after the impact study is approved **and the resettlement plan is presented**, with resettlement governed by its own regulation, technical directive and **supervision commission**. **But practice has often fallen short** — documented experience includes companies fencing community fields, land granted over areas already occupied, and consultations that communities did not understand as consent. The through-line: **your rights exist; the campaign is about evidencing them and refusing a process that treats them as absent**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and record the answers in a document held by the community — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact area, project type and stage, and what is there now — **machambas (fields) and fallows, fruit and cashew trees, wells and rivers, grazing, forest and firewood areas, fishing grounds, graves and sacred sites, and homes**. Obtain the **environmental study** and list every admitted impact with its page reference. Pay particular attention to **water, fields and trees**, and to whether **resettlement** is proposed — because that triggers a separate legal regime and a hard gate in the licensing process.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the project's **category** — A+, A, B or C; (b) which **licence stage** has been reached — provisional, installation, or operation; (c) whether a **DUAT** has been applied for or granted over your land, and by whom; (d) whether a **community consultation** has been held and how it was recorded; and (e) whether the project falls under the **mining or petroleum** environmental regulations in addition to the general regime.

Question 3: What Specific Action Stops It?

Realistic outcomes here include: **community occupation recognised**, with compensation owed; land **delimited**; a **consultation redone**; the **installation licence withheld** until an adequate resettlement plan exists; **resettlement terms improved** on housing, land quality and livelihoods; **works suspended** for operating without or beyond the licence; and, where international finance is involved, **standards enforced through the lender's own mechanism**. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarrise: the **public participation** period during the study; the **consultation** date, which you should not allow to pass without full attendance; and above all the **installation-licence stage**, because that is when the **resettlement plan** must be presented and therefore when your leverage is highest. Where works have begun without a licence, or beyond the stage authorised, act immediately. For court action, take advice on limits — but in practice most gains here come from acting before the installation licence issues.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the proponent and its **foreign parent, lenders and offtakers**, since external standards may be enforceable; whether the project is a national strategic priority; who applied for the **DUAT** and over what area; and what compensation has been offered and to whom. Use public sources — the provincial environmental service file, the cadastre, the Gazette and the lender's own published documents. Build a dated, sourced timeline held collectively.

Output of Step 1: a one-page fact sheet with the affected area and villages, the category and licence stage, the DUAT position, whether a consultation occurred, whether resettlement is proposed, the financiers, and every deadline.

Worked example: which lever is actually open

Suppose a company obtains rights over an area where several villages have farmed for generations, fences part of it, and families are told they will be moved. Working the questions: **Q1** — you record the machambas, the trees, the wells, the graves and the houses, family by family. **Q2** — you establish the **category**, the **licence stage**, and whether a **DUAT** was granted over land already occupied; and you ask whether a **consultation** was held and what was recorded. **Q3** — the decisive facts are that the community's **occupation created a DUAT without any title**, that **witness testimony proves it**, and that if people are to be moved, the **installation licence cannot issue until a resettlement plan is presented**. So the live levers are: documenting occupation household by household; demanding the consultation be held or redone properly; intervening at the **installation-licence stage** on the resettlement plan; engaging the **resettlement supervision commission**; and, if a foreign lender is involved, its grievance mechanism. **Q4** — you act before the installation licence issues, because that is the gate. **Q5** — the lender's own disclosures show what standards it requires. In an afternoon you know that **the occupation record and the resettlement gate are the campaign**.

STEP 2: DOCUMENTATION

Documentation matters more in Mozambique than almost anywhere in this series, and for a specific reason: **your land right already exists, but it is unwritten**. The law says occupation creates the **DUAT**, that the absence of a title does not extinguish it, and that it may be proven by **testimonial evidence**. So documentation here is not merely persuasive material — **it is the legal proof of the right itself**. Build it before anyone asks you for it.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — and prove **who has been using it, and for how long**.

Occupation, household by household. This is the decisive record. For each family: the **machambas** they farm and where; how long they have farmed there and from whom they inherited it; the **trees they planted** — cashew, mango, coconut, citrus — which are both evidence and compensable assets; fallows and rotation areas; grazing; and the house and its outbuildings. Record names, ages and relationships. This is the material that becomes **testimony**.

Witnesses and elders. Because testimony proves rights acquired by occupation, record what the elders can attest: when the village settled there, which families hold which areas, how boundaries are understood, what the customary norms are. Do this while the elders are able to give it.

Water. Document wells, rivers, streams and the points where people draw, wash and fish, and the households depending on each.

Graves, sacred sites and common areas. Record cemeteries, sacred groves, and areas the community uses collectively — firewood, medicinal plants, reeds, fishing. Collective use is part of the customary right.

Mapping. Sketch maps drawn by the community, with GPS points where possible, showing boundaries as the community understands them. This is the raw material for **delimitation**.

How to hold it. Keep everything dated and held collectively, with copies outside the village. A record kept by one person becomes a source of dispute and a target for pressure.

LAYER 2: PROCESS AND PROJECT ANALYSIS

Show what the project would do and whether it is proceeding lawfully. Catalogue four things:

1. **The DUAT position.** Has anyone applied for or been granted a **DUAT** over your land, and over what area? Obtain the cadastre position. A grant over land already occupied, made without a proper community consultation, is the central legal problem in most Mozambican land conflicts.
2. **The consultation.** Was a **community consultation** held? When, where, who attended, in what language, what was explained, what was recorded, and **who signed what**? A record signed by a few leaders after a short meeting is not a community consultation, and documenting the difference is essential.
3. **The environmental process.** What **category** is the project, which **licence stage** has been reached, and was the **licence obtained before implementation began**? Obtain the **environmental study** and mine it for admitted impacts with page references, and for omissions — downstream water users, cumulative effects, and the number of families actually affected, which is frequently understated.
4. **Resettlement.** Is displacement proposed? Has a **Resettlement Plan** been prepared under the technical directive, and has it been **presented** — since the **installation licence** should not issue without it? What does it offer: house, land of equivalent quality and area, restored livelihoods, compensation for trees and crops, and access to water, school and health facilities?

Get expert eyes on it. National organisations specialising in community land rights, delimitation and resettlement can review both the land and the resettlement position, and university and professional contacts can assess water and agricultural impacts. **Approaching such an organisation early is the highest-value step available**, because they have done delimitation and resettlement negotiation many times.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human and economic terms — which is squarely within the environmental law's scope, since it covers **socio-economic and health conditions affecting communities**:

- **Livelihoods** — what each household produces, from which fields, and what it will lose; the value of standing trees; fishing and forest income. Quantify **per household**, because compensation and resettlement are assessed per family.
- **Water and health** — sources affected, distances to alternatives, and risks from dust, effluent or crowding at a resettlement site.
- **Resettlement adequacy** — the quality and area of replacement land, distance to fields, water, school, health post and market, and whether livelihoods can actually be restored there.
- **Graves and social fabric** — what displacement costs beyond assets.

Package this layer twice: a rigorous version in **Portuguese** for the ministry, the commission and any lender, and a plain version in the **local language** for community meetings, so people know what is being claimed in their name.

How to Structure Your Documentation

- **Phase 1: Occupation (Weeks 1-6)** — the household-by-household record and elders' testimony; begin the sketch map.
- **Phase 2: Process (Weeks 2-8)** — the DUAT position, the consultation record, the category and licence stage.
- **Phase 3: Human and economic (Months 2-4)** — per-household losses and the adequacy of any resettlement offer.
- **Phase 4: Ongoing** — dated photographs of works, fencing and clearing, and of any resettlement site.

Common Documentation Pitfalls (What Fails)

- **Assuming no title means no rights** — the opposite is true; occupation creates the right and testimony proves it.

- **Recording the community in aggregate** — compensation and resettlement are per household, so the record must be too.
- **Letting a few signatures stand for consent** — document who actually attended, what was said, and in what language.
- **Missing the installation-licence stage** — that is the gate where the resettlement plan must appear.
- **Not counting trees** — planted trees are both evidence of occupation and compensable assets.
- **Holding the archive in one place** — keep copies outside the village.

Documentation Budget Breakdown (MZN)

Item	Low (community/NGO)	Higher (supported)
Household occupation record	minimal	modest
Sketch mapping and GPS	minimal	modest
Elders' testimony (recording)	minimal	modest
Delimitation support	usually via NGO	moderate
Travel to district and provincial capital	modest	moderate
Legal and technical support	usually via NGO	moderate

The dominant cost is **travel and convening**. Fund it collectively, keep open accounts, and prioritise the **household record** — it is the cheapest and most valuable thing you will produce.

WHAT TO GATHER, AND WHERE TO FIND IT

Some of what decides a Mozambican case is in offices; much of it is in your own village, and only you can create it.

From the community itself. The **household occupation record**, **elders' testimony**, the **sketch map**, and the list of trees, graves and common areas. Nothing else substitutes for this.

The cadastre and land services. Whether a **DUAT** has been applied for or granted over the area, to whom, for what purpose and over what boundaries; and the status of any **delimitation** of community land.

The provincial environmental service and the ministry. The project **registration**, the **category**, the **scoping study**, the **environmental impact study or simplified study**, the record of **public participation**, the **licence** and which **stage** it covers, and any **audit** or inspection records.

The district administration. The record of the **community consultation** — the minutes, the attendance list, and who signed.

The resettlement file. The **Resettlement Plan**, prepared under the technical directive, and the records of the **monitoring and supervision commission**.

Sector files. For mining or petroleum, the sector-specific environmental documentation required in addition to the general regime.

Financiers. Where an international lender, development bank or foreign parent is involved, its **published standards, disclosure documents and grievance mechanism** — often more accessible than domestic files and frequently more responsive.

How to force a document open. Mozambique has a **right to information law**, which supports written requests to public bodies. Address requests to the provincial environmental service, the district administration and the cadastre, keep proof of filing, and record refusals or silence — a refusal is itself useful, both administratively and with lenders.

Free and low-cost help. Mozambique has national organisations with deep experience in **community land rights, delimitation, consultation and resettlement**, alongside lawyers who take these cases. Their involvement typically transforms a community's position, and reaching them is the single most valuable early step.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the provincial service and the sector regulator, and the local-ally entries point you to the organisations already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Mozambique, organising has a legal function that is easy to miss: the community's land right is **collective and unwritten**, and the two decisive processes — the **community consultation** and any **resettlement** — are collective processes. A community that arrives at a consultation informed, united, and holding its own household-by-household record is in an entirely different position from one that arrives to hear what has already been decided. And because a few signatures from leaders are often treated as the community's agreement, **how the community organises its own voice is itself a legal safeguard**.

Three principles carry special weight here: **document occupation first** (it is the proof of the right, and it is created by you, not given to you); **never let a handful of signatures stand for the community** (agree in advance who may sign what, and on what mandate); and **keep the record per household** (because compensation and resettlement are assessed family by family, an aggregate campaign leaves individuals unprotected).

PHASE 1: FOUNDATION (Weeks 1-6)

Step 1a: Start with the most affected — and start the household record. Reach the families whose machambas, trees, water or homes are at stake, and begin the **household-by-household record**: fields, trees planted, years farmed, inheritance, and the house. Begin recording **elders' testimony**.

Step 1b: Affinity groups by concern. Let people join through fields and trees, water, fishing, grazing, graves, or the threat of being moved. Women often hold the detailed knowledge of fields and fallows and should be central to the record, not consulted afterwards.

Step 1c: Contact a national land-rights organisation. They know **delimitation**, consultation practice and resettlement negotiation, and they can tell you within a week whether your position is strong. This is the highest-value early step.

PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Step 2a: Community assembly, before any consultation. Meet as a community first. Agree the facts, agree what the community wants, and agree **who may speak and who may sign, and on what mandate**. Record the decision in minutes with an attendance list.

Step 2b: Prepare for the consultation, and insist it be real. Demand adequate notice, a venue people can reach, explanation **in the local language**, and time to consider. Write in advance to the district administration and the proponent setting out these requirements (Section 8B), and afterwards record what actually happened.

Step 2c: Request the file. Write to the provincial environmental service for the **category, licence stage and study**, and to the cadastre for the **DUAT position** (Section 8C).

Step 2d: Begin delimitation if you can. Where an organisation can support it, **delimitation** of community land converts an unwritten collective right into a recorded one — the most durable protection available.

Step 2e: Media at launch. Time coverage to the consultation or the licence stage.

PHASE 3: COALITION EXPANSION (Months 3-8)

Step 3a: Broaden the alliance. Bring in neighbouring villages within the same project footprint, downstream water users, fishers' and farmers' associations, church and community structures, the **district and provincial authorities** where they will engage, national land-rights and environmental organisations, and — where an international lender or buyer is involved — organisations that work with those mechanisms.

Step 3b: Coalition agreements. Agree who negotiates, who holds the record, who signs, and how any compensation would be handled. Settle this early: in Mozambique, as elsewhere, money offered to individuals is the most effective way to divide a community, and an agreed rule beats an argument after the fact.

Step 3c: Prepare for the resettlement stage. If displacement is proposed, obtain the **technical directive** requirements and prepare the community's own position: replacement land of equivalent quality and area, house standards, distance to fields and water, school and health access, and restoration of livelihoods — not just cash.

PHASE 4: SUSTAINED PRESSURE (Months 6-18)

Step 4a: Intervene at the installation-licence stage. This is the gate: the **installation licence** should not issue until the **Resettlement Plan** has been presented. Write to the ministry and the provincial service setting out why the plan is inadequate or absent (Section 8E).

Step 4b: Engage the resettlement supervision commission. A commission exists to monitor and supervise resettlement; address it directly and in writing, with your household record.

Step 4c: Use external standards where they apply. Where a foreign lender, development bank or buyer is involved, its published standards and grievance mechanism can be invoked, and are frequently more responsive than domestic enforcement (Section 8H).

Step 4d: Public actions — with care. Meetings, memoranda and press engagement are used and effective. Avoid confrontation at project sites and with security personnel, be aware that large projects may operate alongside a heavy security presence, and — critically — **do not attempt public campaigning in conflict-affected districts**, where the risks are of a different order entirely.

Worked example: a community that unlocks the strong levers

Several villages learn that a company has been granted rights over the area they farm, fencing has begun, and families are told they will be moved. Anger rises and someone proposes tearing down the fence — the course most likely to bring arrests and to split the community. What converts the anger into force happens differently. First, three volunteers begin the **household-by-household record**: every family's machambas, the cashew and mango trees they planted, how many years they have farmed, and the graves. Second, the elders' **testimony** is recorded, because under the Land Law **occupation creates the right and witnesses prove it** — no title is needed. Third, the community contacts a **national land-rights organisation**, which confirms the position and begins supporting **delimitation**. Fourth, the community meets **before** the consultation and agrees who may speak and who may sign, so that a handful of signatures cannot be presented as consent; it then demands the consultation be held in the local language, with notice and time. Fifth, having established that families are to be moved, it writes to the ministry and the provincial service at the **installation-licence stage**, pointing out that the licence should not issue until an adequate **Resettlement Plan** is presented, and puts its household record before the **resettlement supervision commission**. In parallel, it raises the same file with the project's **international lender**. The lesson generalises: **in Mozambique the household record you build in month one is the legal proof of a right you already have — and the installation licence is where you use it.**

Opposition Building Budget: Year-Long Campaign (MZN)

Low but travel-heavy. The recurring costs are transport between villages and to the district and provincial capitals, meetings, printing and copying, phone and data, and recording equipment for testimony. Delimitation and legal support are usually carried by national organisations. Keep **transparent, collective accounts** — where compensation is in prospect, the campaign's own accounting will be scrutinised, and open books protect both the campaign and the people leading it.

STEP 4: LEGAL CHALLENGES

Mozambique's strongest community protections are in the land law and in the sequencing of the environmental licence. Three tracks — land rights and consultation, the licence, and resettlement with external standards.

TRACK 1: LAND RIGHTS AND CONSULTATION (the foundation)

- **Assert the DUAT you already hold.** Land is **State property and cannot be sold**; what exists is the **right to use and benefit from land**, acquired by **occupation under customary norms and practices** or by **good-faith occupation of at least ten years** — automatically, without application. The **absence of a title does not extinguish it**, and it may be proven by **testimonial evidence** as well as by a cadastral title. State this expressly in every submission: you are not asking for a right, you are evidencing one.
- **Challenge a DUAT granted over occupied land.** Where the State has granted rights to an investor over land your community occupies, the questions are whether the occupation was identified and whether the **community consultation** was genuinely carried out. A consultation is a required step in the process of granting a DUAT.
- **Attack a staged consultation.** Record who attended, the language used, what was explained, how much time was

given, and **who signed on whose authority**. A short meeting with a few leaders' signatures is not the community's consent, and the difference is documentable.

- **Seek delimitation.** **Delimitation** of community land records collective boundaries with community participation and is the most durable protection available; national organisations support it routinely.

TRACK 2: THE ENVIRONMENTAL LICENCE (the sequencing lever)

- **No licence, no implementation.** The **Lei do Ambiente** requires a **Licença Ambiental** before implementation of any activity likely to cause significant impacts. Works begun without it, or beyond the stage authorised, are actionable — report them to the provincial environmental service in writing.
- **Contest the category.** Projects fall into **A+, A, B or C**, which determines the study, the process and the scrutiny. Where a project affecting many households and their water and fields has been placed low, say so.
- **Use public participation.** Public participation in the impact assessment has its own **general directive**, alongside guidance on how studies must be conducted. Submit written objections and record how participation was actually run.
- **The installation-licence gate — the key moment.** The **Licença Ambiental de Instalação** issues only after the impact study is approved **and the Resettlement Plan, where applicable, has been presented**. Where displacement is proposed and no adequate plan exists, **the licence should not issue** — and saying so in writing, before it does, is the highest-value legal intervention available in this system.
- **Audit and enforcement.** Environmental auditing has its own regulation and quality standards apply; breaches can bring fines, suspension and cancellation of the licence.

TRACK 3: RESETTLEMENT AND EXTERNAL STANDARDS

- **The resettlement regime.** Resettlement arising from economic activities is governed by its **own regulation**, with a **technical directive on the preparation and implementation of resettlement plans** and a **commission to monitor and supervise the process**. Address the commission directly, in writing, with your household record.
- **What to demand.** Replacement land of **equivalent quality and area**, at a workable distance from fields and water; adequate **housing**; **restoration of livelihoods**, not merely cash; compensation for **trees, crops and structures**; and access to water, school, health facilities and market. Insist that assessment be **per household**, using your own record.
- **Sector regulations.** Mining and petroleum operations carry **their own environmental regulations** in addition to the general regime — a second set of requirements to check and, where breached, to raise.
- **International standards.** Where a foreign lender, development bank, parent company or offtaker is involved, its **published standards and grievance mechanism** apply to resettlement and community engagement, and are frequently more responsive than domestic enforcement.
- **The courts.** Administrative and civil actions are available but slow; take advice, and treat litigation as a complement to the licence and resettlement routes rather than the first move.

The three legal challenge types

TYPE 1: LAND RIGHTS AND CONSULTATION (the foundation)

The DUAT acquired by occupation and proven by testimony, a challenge to grants over occupied land, a staged consultation, and delimitation.

TYPE 2: THE ENVIRONMENTAL LICENCE (the sequencing lever)

Licence before implementation, category, public participation, and above all the **installation-licence gate** requiring the resettlement plan.

TYPE 3: RESETTLEMENT AND EXTERNAL STANDARDS

The resettlement regulation, the technical directive, the supervision commission, sector rules, and lender or buyer standards.

Legal Strategy Decision Tree

1. **Has your community occupied this land?** → Then you hold a **DUAT**. Document occupation and testimony now; it is the foundation of everything.
2. **Has a DUAT been granted to an investor over it?** → Examine whether the **community consultation** actually occurred and how it was recorded.

3. **Is displacement proposed?** → The **installation licence** should not issue without a **Resettlement Plan**; intervene in writing before that stage.
4. **Have works begun without a licence, or beyond the stage authorised?** → Report to the provincial environmental service immediately.
5. **Is an international lender or buyer involved?** → Raise the same file under its standards and grievance mechanism.

Litigation and Advocacy Success Factors

A household-by-household **occupation record**; **elders' testimony**, which is legal proof here; the cadastre position showing what was granted over what; a documented account of how the **consultation** was run and who signed; intervention **before the installation licence**; a resettlement position stated per household; and support from a national organisation experienced in delimitation and resettlement.

What to Avoid

Assuming the absence of a title means the absence of rights; letting a few leaders' signatures stand as consent; recording losses in aggregate rather than per family; missing the installation-licence stage; accepting cash without restored land and livelihoods; and campaigning publicly in conflict-affected districts where it is not safe to do so.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Mozambique.

Long occupation without a title → you hold a DUAT (the foundation). Feed it with: the household record, years farmed, inheritance, planted trees, and **elders' testimony**, which the law accepts as proof.

A DUAT granted over land already occupied → defective grant. Feed it with: the cadastre position, your occupation record, and the absence or inadequacy of the consultation.

A consultation held as a formality → the community did not consent. Feed it with: attendance, language, notice, time allowed, what was explained, and who signed on what authority.

Displacement proposed with no adequate Resettlement Plan → the installation licence should not issue. Feed it with: the plan's absence or its failure against the technical directive, and your per-household record.

Works begun without a licence, or beyond the authorised stage → unlawful implementation. Feed it with: dated photographs and the licence stage on file.

Trees, crops and structures lost → compensable assets. Feed it with: counts per household, species and age of trees.

Water, fishing and grazing affected → socio-economic and health impacts within the law's scope. Feed it with: sources, users, and the study's silence.

A foreign lender's standards unmet → external accountability. Feed it with: the lender's published requirements set against what is happening on the ground.

The pattern: **lead with occupation and consultation, use the installation-licence gate, and state resettlement demands per household.**

STEP 5: MEDIA STRATEGY

Media matters in Mozambique for two reasons: national coverage reaches the organisations that can support delimitation and resettlement negotiation, and — where a project is internationally financed — coverage abroad reaches institutions whose standards the project must meet.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the household record showing families farming land for decades, a named woman whose cashew trees were cleared, the cadastre showing rights granted over occupied ground, the consultation minutes with three signatures, and dated photographs of the fencing. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **families farming land for generations who are told they have no rights, resettlement that leaves people worse off, and a consultation nobody understood**. All three are strengthened by the legal fact that **no title was ever required**.

Know the Outlets That Cover This Beat

Map the national press and its correspondents covering land, extractives and resettlement; **community radio**, which reaches rural districts directly and in local languages; and, where an international financier or buyer is involved, the **foreign business and development press**, which follows lender standards closely.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a visit to the machambas and access to affected families, and be scrupulously accurate — with very large investors involved, a single unsupported claim is used to dismiss the rest.

Why media matters even when it doesn't make the front page

Coverage reaches the national organisation that will support delimitation, the lawyer who will act, the officials who set the consultation date, and the lender whose standards are being tested. It also creates a dated public record of what the community said and when — useful when a consultation record later claims otherwise.

Sample Media Timeline

Launch with the occupation record and the fencing; refresh at each milestone — the consultation and how it was run, the licence stage, the resettlement plan or its absence, the commission's response, and any lender engagement.

Media Measurement

Track coverage, but measure what matters: whether the consultation is redone, whether the cadastre position is clarified, whether the installation licence is withheld, whether the resettlement plan improves, and whether compensation reaches households.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated and sourced. Write to the administration in **Portuguese**, deliver against a stamped receipt where possible, and keep proof — in Mozambique the documented request and the dated occupation record are what carry the case. Sign collectively.

8A. Email to a reporter (story pitch)

Subject: [District, Province]: families farming here for generations told they have no rights — occupation record attached

Dear [name],

[Company] has been granted rights over [area] at [location], where [number] families of [villages] have farmed for [decades / generations]. Fencing began on [date]; photographs attached.

We have compiled a **household-by-household record**: fields, planted cashew and mango trees, years farmed, and graves. Under the Land Law, occupation under customary norms — or in good faith for at least ten years — creates

the **right to use and benefit from land**, and **the absence of a title does not extinguish it**; it can be proven by **witness testimony**.

[A community consultation was held on [date] and lasted [time], in [language]; [number] people signed. / No consultation has been held.] [Families are to be resettled, but we have seen no Resettlement Plan.]

I can take you to the machambas and connect you with affected families. Could we speak this week?

[Name] · [Community organisation] · [phone] · [email]

8B. Letter before a community consultation

Assunto: Consulta comunitária relativa ao projecto [nome] — condições para a sua realização

Ao Administrador do Distrito de [distrito], com conhecimento ao [Serviço Provincial do Ambiente] e a [empresa]:

As comunidades de [aldeias], por meio dos seus representantes, tomaram conhecimento de que se pretende realizar uma **consulta comunitária** relativa ao projecto [nome].

Solicitamos que a consulta se realize nas seguintes condições: 1. **Aviso prévio suficiente** e data comunicada com antecedência às aldeias afectadas; 2. **Local acessível** às comunidades afectadas, e não apenas na sede do distrito; 3. **Explicação em [língua local]**, incluindo a área pretendida, os impactos previstos e as implicações para as nossas machambas; 4. **Tempo para deliberar** entre a apresentação e qualquer decisão; 5. **Acta completa**, com lista de presenças, e cópia entregue às comunidades.

Informamos ainda que apenas os representantes mandatados em assembleia comunitária de [data] — [nomes] — estão autorizados a falar ou assinar em nome das comunidades.

[Assinaturas dos representantes, aldeias, data]

8C. Request for the file (land and environment)

Assunto: Pedido de informação — projecto [nome], [localização]

Aos Serviços de Cadastro de [província] e ao Serviço Provincial do Ambiente de [província]:

Ao abrigo do direito de acesso à informação, solicitamos: 1. informação sobre eventual pedido ou atribuição de **DUAT** sobre a área de [localização], indicando o requerente, a área, a finalidade e a data; 2. cópia da **acta da consulta comunitária** realizada, se houver, com a lista de presenças; 3. o **registo do projecto**, a **categoria** atribuída (A+, A, B ou C) e a **fase de licenciamento** em que se encontra; 4. cópia do **estudo ambiental** e do relatório do processo de **participação pública**; 5. cópia da **Licença Ambiental** emitida, indicando a fase, e do **Plano de Reassentamento**, caso exista.

Somos ocupantes da área em causa e temos interesse directo no processo. Agradecemos resposta escrita.

[Nomes, aldeias, data]

8D. Statement of community occupation

Assunto: Declaração de ocupação — comunidades de [aldeias], [distrito]

Ao Administrador do Distrito, aos Serviços de Cadastro e ao Serviço Provincial do Ambiente:

As comunidades de [aldeias] declaram que ocupam e utilizam a área de [descrição e limites conforme o mapa anexo] desde [período], nos termos das normas e práticas costumeiras, e que: 1. **[Número] agregados familiares** cultivam machambas nesta área, conforme o registo anexo, que identifica cada família, as suas parcelas e os anos de cultivo; 2. estão plantadas **[número] árvores de caju, mangueira e outras**, identificadas por família; 3. existem **cemitérios e locais sagrados** em [locais]; 4. a comunidade utiliza colectivamente [zonas de pastagem, recolha de lenha, pesca] em [locais].

Nos termos da Lei de Terras, o **direito de uso e aproveitamento da terra adquire-se por ocupação**, e a **falta de título não extingue** esse direito, podendo ser provado por **prova testemunhal**. Anexamos o registo por agregado familiar, o mapa comunitário e os depoimentos dos anciãos.

Solicitamos que esta declaração seja junta ao processo do projecto [nome].

[Assinaturas dos representantes e dos chefes de agregado, data]

8E. Submission at the installation-licence stage

Assunto: Oposição à emissão da Licença Ambiental de Instalação — projecto [nome]

Ao Ministério responsável pelo Ambiente e ao Serviço Provincial do Ambiente de [provincia]:

As comunidades de [aldeias], ocupantes da área do projecto [nome], opõem-se à emissão da **Licença Ambiental de Instalação** pelos seguintes fundamentos: 1. **Reassentamento sem plano adequado.** [Número] agregados familiares serão deslocados. [Não nos foi apresentado qualquer **Plano de Reassentamento** / o plano apresentado não cumpre a directiva técnica, por [razões: terra de qualidade inferior, distância às machambas, ausência de água, escola ou posto de saúde, ausência de restabelecimento dos meios de subsistência].] A Licença Ambiental de Instalação apenas deve ser emitida após a apresentação do Plano de Reassentamento. 2. **Ocupação não reconhecida.** O estudo subestima o número de famílias afectadas; anexamos o registo por agregado familiar. 3. **Consulta.** [A consulta comunitária não foi realizada / foi realizada em [data], durante [tempo], em [língua], com [número] presenças.] 4. **Água e meios de subsistência.** [Fontes afectadas, utilizadores a jusante, culturas e árvores.]

Solicitamos que a licença não seja emitida enquanto estas questões não forem resolvidas, e que sejamos informados da decisão.

[Assinaturas, aldeias, data]

8F. Submission to the resettlement supervision commission

Assunto: Comunicação à Comissão de Acompanhamento e Supervisão do Processo de Reassentamento — projecto [nome]

Excelentíssimos membros da Comissão,

As comunidades de [aldeias], afectadas pelo projecto [nome] em [distrito, provincia], submetem o seguinte: 1.

Famílias afectadas. [Número] agregados familiares, identificados no registo anexo, com as respectivas machambas, árvores e habitações. 2. **Situação actual.** [Descrição: cercas colocadas em [data]; acesso às machambas impedido; famílias informadas de que serão deslocadas.] 3. **Deficiências do processo.** [Ausência de plano; terra de substituição de qualidade ou área inferior; distância às machambas e à água; ausência de restabelecimento dos meios de subsistência; compensação não paga ou insuficiente pelas árvores e culturas.]

Solicitamos a **verificação no terreno**, a supervisão do processo nos termos da directiva técnica, e que as nossas propostas — anexas — sejam consideradas.

[Assinaturas dos representantes, data]

8G. Press release (effective)

COMUNICADO — [data]

Comunidades de [distrito] apresentam registo de ocupação e opõem-se à Licença Ambiental de Instalação do projecto [nome]

As comunidades de [aldeias], no distrito de [distrito], apresentaram às autoridades um **registo por agregado familiar** que documenta [número] famílias que cultivam a área desde [período], com [número] árvores plantadas e [número] machambas.

«[Citação breve de uma pessoa afectada]», afirmou [nome]. As comunidades recordam que, nos termos da Lei de Terras, **o direito sobre a terra adquire-se por ocupação e a falta de título não o extingue**, podendo ser provado por **prova testemunhal**.

As comunidades solicitaram que a **Licença Ambiental de Instalação não seja emitida** enquanto não for apresentado um **Plano de Reassentamento** adequado.

Contacto: [nome, telefone]. Registo, mapa comunitário e fotografias disponíveis.

8H. Submission to an international lender or buyer

Subject: Community land rights and resettlement — [project], [district], Mozambique

To [the lender / development bank / parent company / oftaker]:

We are the communities of [villages], [district, province], affected by [project], in which you are [lender / investor / parent / buyer].

We attach: a **household-by-household record** of [number] families occupying the area since [period], with fields, planted trees and graves identified; the **community map**; **elders' testimony**; our correspondence with the district administration, the cadastre and the provincial environmental service; and photographs of the works.

We submit that: (i) our land rights arise by **occupation** under Mozambican law and are **not extinguished by the absence of title**; (ii) the **community consultation** [did not take place / did not meet the requirements set out in our letter of [date]]; and (iii) **resettlement is proposed without an adequate plan**, contrary to both the national technical directive and, we believe, your own published standards.

We request that this be considered under your **standards and grievance mechanism**, and that we be informed of the outcome.

[Community representatives, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts and attach your record. Three things to remember: your **land right exists without a title** and is provable by **testimony**, so say so explicitly in every submission; **sign collectively**, through representatives mandated at a recorded assembly, so that a few signatures cannot be presented as the community's consent; and intervene **before the installation licence issues**, because that is the stage at which a **Resettlement Plan** must be presented. Keep stamped copies of everything, and do not attempt public campaigning where security conditions make it unsafe.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Mozambique rewards one thing above all others, and it costs nothing but time. In rough order of impact for the effort:

1. **Start the household-by-household occupation record.** For every family: the machambas, the trees they planted, how many years they have farmed, from whom they inherited, and the house. This **is** your legal proof: occupation creates the **DUAT**, no title is required, and **witness testimony** proves it.
2. **Record the elders' testimony** while you can — when the village settled, who holds what, how boundaries are understood. It is legal evidence, not background.
3. **Meet as a community before any consultation** and agree who may speak and who may sign, on a recorded mandate. This prevents a handful of signatures being presented as the community's consent, which is the most common way communities lose here.
4. **Write to the cadastre and the provincial environmental service** (Section 8C) asking whether a **DUAT** has been granted over your land, and what **category** and **licence stage** the project has reached.
5. **If people are to be moved, write before the installation licence issues** (Section 8E): the **Licença Ambiental de Instalação** should not be granted until a **Resettlement Plan** has been presented.
6. **Contact a national land-rights organisation.** They know delimitation, consultation and resettlement, and can tell you within a week how strong your position is.
7. **If there is an international lender or buyer, send the same file to them** (Section 8H).

If you do only the first three, you have created the legal proof of a right you already hold and protected the community from a staged consultation. That is the most valuable thing a Mozambican community can do, and it requires no money at all.

WHEN THE SYSTEM IS TILTED

Mozambique's tilt is not the absence of community rights — the land law is unusually protective — but the gap between those rights and the power of the actors who arrive to use the land.

What This Tilt DOES (and DOESN'T DO)

The tilt means environmental studies are proponent-funded; provincial services are stretched; investors in gas, coal, heavy sands and plantations are very large and politically important; consultations have been conducted as formalities; resettlements have left families with worse land and unrestored livelihoods; and many rural people do not know their

unwritten occupation is legally protected. It does **not** remove your position: land is **State property that cannot be sold**; the **DUAT arises from occupation** under customary norms or ten years' good faith, **is not extinguished by the absence of a title**, and is **provable by testimony**; a **community consultation** is required before land is granted; community land can be **delimited**; the environmental law expressly covers **socio-economic and health conditions of communities**; a **licence is required before implementation**; the **installation licence** cannot issue until a **Resettlement Plan** is presented; and resettlement has its own regulation, technical directive and **supervision commission**.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Long occupation, no consultation or a defective one, resettlement proposed, organisation engaged.** The strongest position: a legal right you can evidence, a required step that was skipped, and a licensing gate ahead of you.
- **Mixed.** A consultation occurred and a licence exists, but the resettlement plan is weak or the number of affected families understated. Weight shifts to the household record, the supervision commission, and lender standards.
- **Entrenched.** A national strategic project with the licence granted and works advanced. Assume the project proceeds; concentrate on **compensation, replacement land, housing and livelihood restoration**, which is where the difference to families is actually made.
- **Conflict-affected.** In districts affected by armed conflict and mass displacement, the assumptions of this guide do not hold. Documentation kept safely, and work through national organisations, may be all that is responsible.

Documented Mozambican Dynamics

The record shows protective law meeting hard practice. **The 1997 reform recognised existing rights** — it was a **juridical recognition of the rights of the rural population**, not a redistribution, granting the **DUAT** through **occupation under customary norms and practices** or **good-faith occupation of at least ten years**, acquired automatically, with the **absence of title not extinguishing the right** and **testimonial evidence** admitted as proof. **Consultation is embedded in land grants**, and **community land may be delimited** with community participation. **The environmental regime is sequenced** — four categories, three licence stages, a dedicated **general directive on public participation**, and an **installation licence** that issues only after the impact study is approved **and the resettlement plan is presented**, with resettlement having its own regulation, technical directive and **supervision commission**. **But practice has fallen short** — documented cases include companies **fencing off community machambas**, land granted over areas already occupied, and disputes in which communities found their access removed. The through-line: **the law is on your side; the campaign is about evidencing occupation, refusing a staged consultation, and using the resettlement gate**.

Assessment Framework — Determine Your Situation

Ask: how long has each family occupied, and can we evidence it? Has a **DUAT** been granted over our land, and was a **consultation** held? What **category** and **licence stage**? Is **resettlement** proposed, and does a **plan** exist that meets the technical directive? Is an **international financier** involved? Is it safe to organise publicly here? The answers tell you whether to fight on occupation and consultation, at the licence gate, on resettlement terms, or through external standards.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Mozambican communities use assemblies, memoranda to district and provincial authorities, press engagement and — where organisations support them — formal submissions and delimitation. Three cautions are specific and serious. **Confrontation at project sites** can bring arrests, and very large projects often operate alongside a substantial security presence. **Money offered to individuals** is the most effective way to divide a community, so agree collective rules in advance. And in **conflict-affected districts**, public campaigning may be impossible and dangerous; there, documentation held safely and channelled through national organisations is the responsible course. This guide notes such realities; it does not advise breaking the law, and safety comes first.

Honest Assessment

Tilted fights are harder, and Mozambique's difficulty is that communities holding real rights are frequently treated as holding none. But "harder" is not "hopeless": the law says occupation creates the right, that no title is required, and that witnesses can prove it — and the licence cannot lawfully advance to installation without a resettlement plan. Concentrate force where the tilt is weakest — **the occupation record, the consultation, and the resettlement gate** — and get a national organisation involved early.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with, or the product of institutions without capacity. But capture is real. Read your situation actor by actor, and document rather than accuse.

The consultation. The characteristic failure: a short meeting, at a distance, in a language not everyone follows, with a few leaders' signatures presented afterwards as the community's agreement. Lever: your pre-consultation letter setting conditions, your recorded mandate for who may sign, and your account of what actually happened.

The DUAT grant. Land granted over areas already occupied, sometimes with the occupation simply not recorded. Signs: a cadastral area that overlaps your machambas; a grant date preceding any meeting you attended. Lever: the cadastre position against your occupation record.

The study's numbers. The count of affected families is the single most manipulable figure in the file, because it determines compensation and resettlement obligations. Signs: a study naming far fewer households than actually farm there. Lever: your household-by-household record — this is precisely why you build it.

Compensation and division. Payments to individuals, or to a few leaders, ahead of a collective settlement. Signs: selective offers, sudden changes of position among leaders. Lever: collective rules agreed in advance, open accounts, and transparency about every offer received.

Resettlement delivery. Plans that promise and sites that do not deliver — poorer land, further from water and fields, without restored livelihoods. Lever: the technical directive, the **supervision commission**, and lender standards.

How to act on it, safely. Document from the cadastre, the provincial file and your own record before you speak. Route genuine concerns to the environment ministry and provincial service, the **resettlement supervision commission**, the Administrative Tribunal for public accounts, and the ombudsman and human rights bodies for administrative conduct — and, where relevant, to the project's **international lender or buyer**. Do not publish unproven accusations about named individuals, and be especially careful with allegations touching community leaders: in a dispute over land and compensation, that is the fastest route to lasting division.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Mozambique the timeline is shaped by one fact that changes everything: **the most valuable work — recording occupation — can begin today, without permission, without money, and without waiting for any official process to start.**

Realistic 12-Month Campaign Timeline

Months 1-2 (Build the proof). - Begin the **household-by-household occupation record**: fields, planted trees, years farmed, inheritance, houses. - Record **elders' testimony** on settlement, boundaries and customary norms. - Draw the **community map** with GPS points where possible. - Hold a community assembly and record **who may speak and sign** on the community's behalf. - Contact a **national land-rights organisation**.

Months 2-4 (Establish the position). - Write to the **cadastre** on the **DUAT** position, and to the **provincial environmental service** on the **category, licence stage and study** (Section 8C). - File the **declaration of community occupation** (Section 8D). - If a **consultation** is coming, send the pre-consultation letter setting conditions (Section 8B), attend in numbers, and record exactly how it was run. - Begin **delimitation** where an organisation can support it. - Launch media on the occupation record.

Months 4-8 (The licence gate). - Track the **licence stage**. Where displacement is proposed, submit **before the installation licence issues** that it should not be granted until an adequate **Resettlement Plan** is presented (Section 8E). - Put the household record before the **resettlement supervision commission** (Section 8F). - Where an **international lender or buyer** is involved, submit the same file under its standards (Section 8H). - Report any works begun **without a licence** or beyond the authorised stage.

Months 8-12 (Terms and delivery). - Negotiate resettlement on the community's terms: **land of equivalent quality and area**, housing, distance to fields and water, school and health access, and **restored livelihoods**, not cash alone. -

Verify compensation **per household** against your own record — trees, crops, structures. - Monitor delivery on the ground and report shortfalls to the commission and the financier.

Beyond 12 months. - Complete **delimitation**, which protects the community against the next project as well as this one. - Keep the household record current; it is a permanent asset. - Monitor resettlement outcomes for years — the failures usually appear after the cameras leave.

Warning Signs — Act Early

Survey teams or beacons on the machambas; fencing; a meeting called at short notice at the district capital; talk of "the company's land"; families being counted or photographed; offers of money to individuals; clearing of trees. Each is a trigger to **start or update the household record that week** — because in Mozambique the record you build before you are asked for it is the record that proves your right.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: build the **household-by-household occupation record** early; record **elders' testimony**; agree in advance **who may sign**; write to the cadastre and provincial service; intervene **before the installation licence**; state resettlement demands **per household**; pursue **delimitation**; keep collective accounts; and use **lender standards** where available. Losing campaigns: assume no title means no rights; let a few signatures stand for consent; record losses in aggregate; miss the installation-licence stage; and accept cash without land and livelihoods.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Mozambique takes forms suited to a country where land cannot be bought and rights are unwritten. It is worth naming them so you recognise a win when you get one: - **community occupation recognised**, and the families counted correctly; - **community land delimited**, converting an unwritten right into a recorded one — protection against every future project; - a **consultation redone** properly, in the local language, with time to deliberate; - the **installation licence withheld or conditioned** until an adequate **Resettlement Plan** exists; - **resettlement terms materially improved** — land of equivalent quality and area, adequate housing, water, school and health access, and **restored livelihoods**; - **compensation actually paid**, per household, for trees, crops and structures; - **works suspended** where they began without a licence; - and, where an international financier is involved, **its own standards enforced** through its grievance mechanism.

Mozambican communities and the organisations supporting them have achieved these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. The occupation record is worth building regardless of what else you decide — it costs nothing, it proves a right you already hold, and it protects you against the next project as well as this one. If a consultation is coming, that is your moment of maximum leverage on the land question; if resettlement is proposed, the **installation-licence stage** is your moment on the environmental one. If the project is a national strategic priority with the licence granted and works advanced, be realistic: the achievable win is **better terms, properly delivered**, and for a family losing its fields that is not a consolation prize. And where conflict makes public organising unsafe, **stop** — document, keep the record safe, and work through national organisations.

The Bottom Line

Mozambique's institutions are stretched, its studies are proponent-funded, its investors are very large, and its documented experience includes fenced machambas, consultations conducted as formalities, and resettlements that left families worse off. But its law begins from an unusually strong premise. **Land is the property of the State and cannot be sold, alienated, mortgaged or pledged.** What people hold is the **DUAT**, acquired by **occupation according to customary norms and practices** or by **good-faith occupation for at least ten years** — automatically, with no application and no document — and the **absence of a title does not extinguish it**, since it may be proven by **testimonial evidence**. A **community consultation** is required in the process of granting land to others, and community land may be **delimited** with community participation. The **Lei do Ambiente** covers activities affecting the **socio-economic and health**

conditions of communities and requires a **licence before implementation**; the impact regulation sorts projects into **A+, A, B and C** and splits licensing into **three stages**, with the **installation licence issuing only after the impact study is approved and the Resettlement Plan is presented**; public participation has its own directive; and resettlement has its own regulation, technical directive and **supervision commission**. Communities that record occupation household by household, capture the elders' testimony, agree in advance who may sign, write to the cadastre and the provincial service, refuse a staged consultation, intervene before the installation licence, and state their resettlement terms per family have had their rights recognised, their land delimited, their consultations redone, and their resettlement terms materially improved. No single step wins; the combination does. Start today by writing down, family by family, who farms what — and for how long.